

judgment, if a decision of the EPO included several grounds supported by respective arguments and evidence, it was of fundamental importance that the decision as a whole met the mandatory requirements of Art. 113(1) EPC 1973. Leaving it up to the deciding body to suggest which of the grounds were to be considered as the basis of the decision and which were not – and did not therefore need to comply with the requirements of Art. 113(1) EPC 1973 – could only lead to legal uncertainty and confusion of the parties. An exception from the above principle could be obiter dicta which were not part of the grounds on which a decision is based.

2.6.3 Inclusion of the essential reasoning

In T 951/92 (OJ 1996, 53) the board held that if a communication under R. 51(3) EPC 1973 and pursuant to Art. 96(2) EPC 1973 did not set out the essential legal and factual reasoning to support a finding that a requirement of the EPC had not been met, then a decision based on such a finding could not be issued without contravening Art. 113(1) EPC 1973, unless and until a communication had been issued which did contain the essential reasoning. If a decision was issued in the absence of a communication containing essential reasoning, Art. 96(2) EPC 1973 was also contravened, since in order to avoid contravening Art. 113(1) EPC 1973 it was "necessary" to issue a further communication (see also T 520/94, T 750/94, OJ 1998, 32; T 487/93, T 121/95, T 677/97). Moreover, the board summed up the case law by stating that Art. 113(1) EPC 1973 was intended to ensure that, before a decision refusing an application for non-compliance with a requirement of the EPC was issued, the applicant had been clearly informed by the EPO of the essential legal and factual reasons on which the finding of non-compliance was based. This was so that in advance of the decision he knew both that the application might be refused and why, and also so that he might have a proper opportunity to comment upon the reasons and/or to propose amendments so as to avoid refusal of the application. Thus the term "grounds or evidence" in Art. 113(1) EPC 1973 should not be narrowly interpreted. In particular, in the context of the examination procedure the word "grounds" did not refer merely to a ground of objection to the application in the narrow sense of a requirement of the EPC which was considered not to be met. The word "grounds" should rather be interpreted as referring to the essential reasoning, both legal and factual, which led to refusal of the application (T 187/95). In other words, before a decision was issued an applicant had to be informed of the requirement which he had to meet and had to have an opportunity of meeting it (see also T 520/94; T 750/94, OJ 1998, 32; T 487/93; T 121/95).

In T 907/91 the examining division refused the application without informing the applicant of its grounds for not accepting the amended documents submitted after receipt of the first communication and after oral proceedings. The board held this action to be in breach of Art. 113(1) EPC 1973 because, prior to issuing the contested decision in written or oral proceedings, the examining division should have given its reasons for refusing to accept the amended documents. Such grounds could be of a formal nature or relate to substantive patent law, depending on the relevant provisions. However, other grounds could also be brought to bear, based on generally recognised principles of procedural law (see Art. 125 EPC 1973), such as the applicant's attempt to delay proceedings by submitting

an excessively large number of requests for amendments in clear abuse of the patent grant procedure.

In T. 763/04 the board stated that Art. 113(1) EPC enshrined a party's right to be heard before a decision was issued against it. In accordance with the established case law of the boards of appeal (see J. 7/82, OJ 1982, 391 and T. 94/84, OJ 1986, 337) this right also guaranteed the right to have the relevant grounds fully taken into account in the written decision. The board held that Art. 113(1) EPC 1973 would be contravened where, as in the case in hand, facts and arguments, which from the appellant's submissions were clearly central to his case and which may speak against the decision taken, were completely disregarded in the decision in question. The board stated that Art. 113(1) EPC 1973 required not merely that a party be given the opportunity to voice comments, but more importantly that the deciding instance demonstrably heard and considered these comments. In summary, the right to be heard in accordance with Art. 113(1) EPC 1973 was contravened if the decision of the first instance failed to mention and to take into consideration important facts and arguments which may speak against the decision in question. See also T. 206/10, T. 246/08.

2.6.4 Essential reasoning based on an International Preliminary Examination Report (IPER)

In T. 275/99 the board held that the requirements of Art. 113(1) EPC 1973 were met if the appealed decision was entirely based on the grounds, facts and evidence which were already known to the appellant from the extensive IPER which had been drawn up for the description and the claims of the international application corresponding exactly to the European application refused and which had been incorporated by way of reference in an official communication of the examining division.

In T. 587/02 the board held that if the only communication preceding the decision to refuse an application merely drew attention to an IPER, the requirements of Art. 113(1) EPC were met provided the IPER constituted a reasoned statement as required by R. 51(3) EPC 1973, using language corresponding to that of the EPC.

In T. 1870/07 the single communication from the examining division pursuant to Art. 96(2) EPC 1973 merely signalled agreement with the IPER. The board did not see any objection to citing an IPER from an International Preliminary Examining Authority other than the EPO, provided that it constituted a reasoned statement (see, for example, T. 951/92). However, in its view, the IPER failed to meet the requirements of a reasoned statement. In the communication of the examining division, there was no logical chain of reasoning which would have permitted the appellant to understand and deal with the novelty objection, either by amendment or counterargument. Art. 113(1) EPC 1973 was, therefore, not satisfied.

2.6.5 Fresh argument based on grounds and evidence communicated beforehand

According to the case law of the boards of appeal, the use of a fresh argument in a decision still based on grounds and evidence communicated beforehand is not precluded.

In T. 268/00 the board pointed out that the right to be heard pursuant to Art. 113(1) EPC 1973 only precluded a decision being taken on the basis of fresh evidence and grounds, while the use of a fresh argument in a decision still based on grounds communicated beforehand was not precluded. Hence the technical argument in the decision under appeal addressed by the appellant, whether fresh or not, did not violate any of the appellant's rights. As to the technical substance of that argument, whilst the appellant might neither agree with the finding of the examining division nor with the technical argument given, a divergence of views between the examining division and the appellant on the substantive issue of inventive step did not amount to a procedural violation. See also T. 1557/07, T. 815/08.

2.6.6 Bona fide attempt by the applicant to overcome the objections

In a case where an applicant has made a bona fide attempt to overcome the objections raised by the examining division, Art. 113(1) EPC may require such an attempt to be confirmed in the light of amended claims and substantial comments of the applicant (T. 734/91, T. 582/93).

In T. 734/91 the appellant had filed a fresh set of claims in reply to a communication of the examining division, the subject-matter of claim 1 being considerably changed in the light of the objection of lack of novelty raised by the examining division. The effort by the appellant was therefore considered to represent a bona fide attempt to overcome these objections. Claim 1 as amended had not been dealt with in the communication by the examining division but only in the contested decision. Thus the appellant did not have an opportunity to present his comments with regard to the grounds for refusal of this amended claim 1. The board stated that the examining division had to communicate the grounds against the grant of a patent to the applicant before refusing an application. In doing so it had to exercise its discretion to decide when it was deemed necessary and appropriate to invite the applicant's comments. This had to be done objectively in the light of the circumstances of each case (T. 162/82, OJ 1987, 533). This did not mean that the applicant should be given repeated opportunity to comment on the same objections (T. 161/82, OJ 1984, 551; T. 42/84, OJ 1988, 251; T. 243/89). In a case where an applicant had made a bona fide attempt to overcome the objections raised by the examining division, Art. 113(1) EPC 1973 may require such an attempt to be confirmed in the light of amended claims and substantial comments of the applicant. See also T. 998/05.

In T. 763/04 the board held that the appellant, who had made a bona fide attempt to address the sole objection raised, could have legitimately expected the examining division out of fairness to use the discretion afforded by Art. 96(2) EPC 1973 to offer at least one further opportunity to address the objection. The board considered the refusal after the third communication, which was the first R. 51(3) EPC 1973 compliant communication as regards the ground of lack of novelty, without the issuance of a further communication, to represent a violation of the general principle of good faith and fair proceedings underlying the proceedings before the EPO.

In T. 92/96 the board found that, after notification of a correctly reasoned communication from the examining division, the applicants had had an opportunity to comment on the

objections set out therein, but had confined themselves to suggesting a minor correction to the claim. The examining division decided to refuse the application, since the applicants had made no real effort to reply to the objections. In the board's view, the applicants had therefore suffered no prejudice. Consequently, the examining division had not committed a procedural violation, particularly with regard to Art. 113(1) EPC 1973.

2.6.7 Form of the communication under Article 113(1) EPC

In T 1237/07 the board pointed out that the right to present comments enshrined in Art. 113(1) EPC 1973 did not necessarily need to be exercised in writing but could be satisfied by way of oral proceedings.

In T 497/02 the board found that Art. 113(1) EPC 1973 merely required applicants to be afforded the opportunity to present their comments on the grounds on which the EPO had based its decision: it did not require a written communication nor did it specify how much time applicants should be afforded to consider and present their comments.

2.7. Informal communications

2.7.1 Telephone conversations

In T 300/89 (OJ 1991, 480) the board held, in relation to the appellant's complaint as to the failure of the examiner to telephone as requested, that the practice in relation to such informal communications was clearly set out in the Guidelines. Such informal communications and the practice relating to them should be clearly distinguished from the formal examination procedure governed by Art. 96(2) EPC 1973 and R. 51 EPC 1973. The examiner's discretion as to whether to make such an informal communication had to be exercised in accordance with the Guidelines, having regard to the particular circumstances of each individual case. An exercise of such discretion adversely to an applicant, such as in the case in question, could not by its nature be a procedural violation, however, because the procedure for such conversations was informal in the sense that it was not governed by the EPC 1973, but was additional to the procedure provided by the EPC 1973. In any event, in the board's view, in the case in question no criticism could properly be made of the examiner in relation to his failing to telephone the appellant.

In T 160/92 (OJ 1995, 35) the appellant claimed that in two telephone conversations with the primary examiner he was misled into believing that a refusal was not imminent, as a further communication would be issued as the next step of the procedure. The board observed that one should be warned against expecting too much from telephone calls in critical situations, as misunderstandings could happen more easily than in writing. It was with good reason that the procedure before the EPO was in principle, with the exception of oral proceedings under Art. 116 EPC 1973, a written procedure. Moreover, in the examination (as well as in the opposition) procedure the primary examiner was only one of a division of three examiners, it being well-known that his individual statements could not be binding for the division. Furthermore, telephone conversations were not provided for in the EPC and did not, as such, form part of the formal procedure before the EPO. The board held that the answer to the controversial question whether the applicant was

misled about the possibility of imminent refusal of the application must be sought by focusing on the procedurally relevant content of the file.

In T.1905/07 the board pointed out that presenting new grounds in a telephone conversation should not be equated with presenting the same grounds in formal oral proceedings or in a formal written communication. First, mere verbal communication by telephone was more prone to misunderstandings. Secondly, a party also had a right to be heard by the organ which took the decision, i.e. the examining division in the case in hand. A telephone conversation with only one of the examiners of that division did not safeguard this right in the same way as oral proceedings. Whether or not a party's fundamental right to be heard had been infringed depended on the particular circumstances of the case.

In T.702/17 the board explained that conducting oral proceedings with a party over the telephone was not provided for in the EPC. Accordingly, the examining division had acted correctly in refusing to allow the inventor to take part in the oral proceedings over the phone. Furthermore, the inventor had still been allowed to speak over the telephone, with the representative relaying the inventor's words to the examining division – a course of action the representative had agreed to, according to the minutes. The board found that there was therefore no substantial procedural violation which would justify a refund of the appeal fee.

2.7.2 Interviews

In principle, the refusal of a request for an interview with the examiner concerned does not contravene any of the rules of procedure contained in the EPC. A consultation request from the applicant should usually be granted unless the nature of the issue to be discussed requires formal proceedings or the examiner believes that no useful purpose would be served by such a discussion (Guidelines C-VII, 2, March 2022 version).

In T.98/88 it was held that Art. 116 EPC 1973 gave every party the absolute right to oral proceedings, but not the right to an interview with a particular member of an examining division. It was for the examiner concerned to decide whether such an interview should take place (see also T.589/93). In T.193/93, the board held that examiners were under no obligation to grant an "interview" (T.235/85, T.909/95).

In T.409/87 the board noted that a request for an interview was clearly not, by itself, a request for oral proceedings and there was thus no obligation upon the examining division to grant a request for an interview when, as set out in the Guidelines, the examiner believed that no useful purpose would be served by such a discussion (see T.19/87, OJ 1988, 268, T.909/95). As an interview, in contrast to oral proceedings, is not a procedural step provided by the EPC, the refusal to grant a request for an interview was not a decision open to appeal and, therefore, does not fall under the provision of R.68(2), first half-sentence, EPC 1973. See also T.283/88.

In T.299/86 (OJ 1988, 88) the board held that the right of a party to request oral proceedings under Art. 116 EPC 1973 was in no way affected by the fact that such party could have also requested and/or attended an interview with the examiner.